

Rakesh Padha vs Ramnitu Sharma Alias Pinki on 20 May, 2024

Author: Rahul Bharti

Bench: Rahul Bharti

Serial No. 08

HIGH COURT OF JAMMU & KASHMIR AND LADAKH
AT JAMMU

Case:- RFA No. 16/2024
CM Nos. 2802/2024 & 2803/2024

Rakesh PadhaAppellant(s)
Through: Ms. Vasudha Sharma, Advocate.
Vs
Ramnitu Sharma Alias Pinki Respondent(s)
Through:

Coram: HON'BLE MR. JUSTICE RAHUL BHARTI, JUDGE

ORDER

(20.05.2024)

1. The appellant is the husband of the respondent who entered into marital relationship on account of marriage which came to take place on 08.08.2013 in accordance with the Hindu Rites and Rituals out of which a girl child came to be born to them on 07.05.2014.
2. The respondent-wife came to invoke maintenance proceedings under section 125 of the Code of Criminal Procedure, 1973 with a petition before the Chief Judicial Magistrate, Kathua instituted on 19.03.2022 wherein by virtue of an order dated 15.09.2022, the Chief Judicial Magistrate, Kathua came to levy an amount of Rs. 6,000/- per month as maintenance payable in favour of the respondent by the appellant herein till the final disposal of the maintenance proceedings under section 125 of the Code of Criminal Procedure, 1973.
3. This maintenance proceedings above referred are said to be pending adjudication before the Chief Judicial Magistrate, Kathua.
4. The appellant came forward with an institution of a divorce petition before the Principal District Judge, Samba. Institution of this divorce petition came to take place on 25.08.2023 in which the respondent-wife appeared and filed an application under section 24 of the Hindu Marriage Act, 1955 seeking maintenance pendente-lite and litigation expenses.

5. The court of Principal District Judge, Samba by virtue of an order dated 28.11.2023 came to an award monthly maintenance of amount of Rs. 8,000/- in favour of the respondent payable by the appellant and in addition, a onetime payment of Rs. 35,000/- as litigation expenses in favour of the respondent again to be born out by the appellant.

6. Thus, application filed by the respondent under section 24 of the Hindu Marriage Act, 1955 came to be disposed of by the Principal District Judge, Samba in terms of an order dated 28.11.2023. In the order dated 28.11.2023 though reference has been made about the fact that the petitioner has already been burdened with the liability of payment of Rs. 6,000/- per month in favour of the respondent but the court of the Principal District Judge, Samba has omitted to consider the said payment to be included in the monthly maintenance of Rs. 8,000/- to the respondent meaning thereby the respondent is held entitled to different maintenance allowances from the appellant by the two different courts and that has left the appellant aggrieved that he being in private employment has not only his minor daughter to look after but also his aged parents as well out of meager salary drawn from the private employment.

7. Against this order dated 28.11.2023, the appellant is said to have preferred a civil revision in December, 2023 which came to be returned on the basis of a purported fact that an appeal is maintainable against the said order as a result whereof the appellant has come up with an appeal under section 19 of the Family Courts Act, 1984.

8. The Hindu Marriage Act, 1955 per se does not provide an appeal under section 28 against an order passed under section 24 but the Family Courts Act, 1984 in terms of section 19 provides a right to appeal against every judgment and order of the Family Courts to the High Court in the matter which is cognizable under section 7 of the Family Courts Act, 1984. The marital related matters which includes a case for dissolution of marriage is also within the jurisdiction of the Family Court.

9. However, for the District Samba, there is no Family Court constituted meaning thereby the District Judge, Samba is dealing with the petition of the petitioner for dissolution of the marriage by decree of divorce under section 13 of the Hindu Marriage Act, 1955 by virtue of its jurisdiction under section 19 of the Hindu Marriage Act, 1955 and, as such, the filing of the appeal by the appellant is under a misconception that the District Judge, Samba has exercised jurisdiction under the Family Courts, 1984 and that is excusable.

10. In the interest of justice, considering the fact that the respondent is earning monthly maintenance of Rs. 6,000/- from the appellant by virtue of an order dated 15.09.2022 from the court of Chief Judicial Magistrate, Kathua had no point of time ever agitated the maintenance so granted in her favour to be on the lesser side and then getting maintenance pendente-lite of Rs. 8,000/- from the court of District Judge, Samba is a fact which needs to be examined and, therefore, this Court allows this appeal to be taken as petition under section 227 of the Constitution of India and, accordingly, Registry is directed to diarize it as petition under Article 227 of the Constitution of India instead of it being an appeal under the Family Courts Act, 1984.

11. Learned counsel for the appellant submits that litigation expenses of Rs. 35,000/- has been paid by the appellant in compliance to the order dated 28.11.2023.
12. Prima facie case is made out.
13. Issue notice to the respondent.
14. Appellant to furnish registered postal cover for the service of the respondent within seven days, whereupon the Registrar Judicial, Jammu to issue notices to the respondent.
15. Send for the scanned record of file No. IA/2A/2023 from the court of Principal District Judge, Samba.
16. List on 19.07.2024.
17. In the meantime, operation of the impugned order dated 28.11.2023 in case titled "Rakesh Padha Vs. Ramnitu Sharma" passed by the Principal District Judge, Samba to the extent of the payment of monthly maintenance of Rs. 8,000/- by the appellant in favour of the respondent shall remain stayed. This order is, however, subject to objections from the other side.

(RAHUL BHARTI) JUDGE JAMMU 20.05.2024 Shivalee